



U.S. Department
of Transportation

Research and
Special Programs
Administration

FEB 6 1998

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10576
(SECOND REVISION)

EXPIRATION DATE: January 31, 2000

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. GRANTEE: Simpson Tacoma Kraft Company
Tacoma, Washington
2. PURPOSE AND LIMITATION: This exemption authorizes tank cars containing chlorine to remain standing with unloading connections attached when no product is being transferred. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 172.302 and 174.67(i) and (j).
5. BASIS: This exemption is based on the application of Simpson Tacoma Kraft Company dated December 4, 1997, submitted in accordance with 49 CFR 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Chlorine	2.3	UN1017	n/a

officials to learn the responsibilities and resources of each governmental agency that may be called upon to respond to an emergency involving the tank car and transfer facility and acquaint the officials with the facility's capabilities and procedures in the event of an emergency.

g. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

h. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

8. SPECIAL PROVISIONS.

a. Any manually operated switch providing access to the track on which the equipment is located must be lined against movement to that track and locked with an effective locking device operable only by a representative of the facility.

b. The facility operator shall install a bi-directional derail in an effective location (at least 50 feet when possible) from the end of the equipment to be protected by the caution sign. The person performing the unloading operation shall lock the device in the derailing position with an effective locking device operable only by a representative of the facility.

c. The facility operator shall have written safety procedures on file at each location that uses this exemption. The facility operator shall instruct each employee performing any function under this exemption on the contents of these procedures and ensure compliance with them. The written procedures must contain at least the following:

(i) A physical description of the facility including the address and hours of operation.

(ii) A drawing of the transfer facility showing natural and manmade barriers, locations of protective equipment (i.e., derail and caution signs), locations of

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emergency equipment and locations of signaling equipment.

(iii) Procedures for monitoring the transfer facility [see paragraphs 7(a) and (b)].

(iv) Information on the contents of the tank car including:

(a) chemical or common name of the product

(b) health and physical hazards involved in handling the product

(c) emergency and first aid procedures

(v) Procedures for securing the transfer facility and protective equipment including derail, switch locks, tank car brakes, caution sign and wheel blocks.

(vi) Equipment available for employee safety and procedures for using the equipment.

(vii) Procedures and limitations for movement of tank cars in the vicinity of the transfer facility.

(viii) Testing and maintenance of system components including signaling systems.

(ix) Training requirements for designated employees responsible for monitoring the transfer facility.

(x) Procedural steps in the event of an emergency, including names and phone numbers of key personnel and public agencies to contact.

(xi) Procedures for reviewing incidents to determine whether the written procedures require revision or modification to prevent future occurrences and amending those procedures when the review necessitates changes.

d. The marking requirements in § 172.302 are waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Rail freight.

10. MODAL REQUIREMENTS: None as a requirement of this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this

exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in 49 CFR 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

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for 
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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